

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: _____

CAMELLA WONG and LACEY CHARLES,

INDEX NO. _____

Plaintiffs,

Plaintiffs designate Kings
County as the place of trial.

-against-

S U M M O N S

P.O. THOMAS THEN (Shield # 11261), THE CITY OF NEW
YORK, NEW YORK CITY POLICE DEPARTMENT and and
POLICE OFFICERS ; "JOHN/JANE DOES (the names being
fictitious, and who are employees of the New York City Police
Department who are not yet identified) ,

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in ther action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of ther
summons, exclusive of the day of service of ther summons, or within 30 days after service of
ther summons is complete if ther summons is not personally delivered to you within the State
of New York.

In case of your failure to answer ther summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of ther action.

Dated: New York, New York
September 21, 2015

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

THOMAS THEN (Shield # 11261)
THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.

CAMELLA WONG and LACEY CHARLES,

Plaintiffs,

VERIFIED COMPLAINT

-against-

P.O. THOMAS THEN (Shield # 11261), THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and and POLICE OFFICERS ; "JOHN/JANE DOES (the names being fictitious, and who are employees of the New York City Police Department who are not yet identified) ,

Defendants.

Plaintiffs, by their attorneys, ASHER & ASSOCIATES, P.C., as and for their Verified Complaint, respectfully alleges, upon information and belief:

1. At all times hereinafter mentioned, plaintiffs were and still are residents of the County of Kings, State of New York.
2. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK (hereinafter "CITY") was and still is a domestic municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. At all times hereinafter mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was and still is a domestic municipal agency duly organized and existing under and by virtue of the Laws of the State of New York.
4. On or about June 22, 2014, the defendant P.O. THOMAS THEN was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer acting under the color of law.

5. On or about June 22, 2014, the defendants POLICE OFFICERS "JOHN/JANE DOES" were citizens of the United States and the State of New York and were employed by the NYPD as police officers.

6. Upon information and belief, Officers "JOHN/JANE DOES" were assigned to the PSA 3 Precinct of the NYPD at the time of the occurrences alleged in the complaint. They are being sued in both their individual and official capacities.

7. Notice of the plaintiffs' claim and intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained, was duly served by said plaintiffs upon the defendants, CITY and NYPD within ninety (90) days of the causes of action herein accrued, all as required by the General Municipal Law, Section 50-e.

8. At least thirty (30) days have elapsed since the demand or claim upon which their action is founded was served upon the aforementioned defendants for adjustment and the defendants have neglected and/or refused to make an adjustment or payment thereon for said period of thirty (30) days after such presentation.

9. The plaintiffs have duly submitted to the statutory hearing concerning the justness of their claims.

10. Plaintiffs complied with all applicable Sections of the General Municipal Law which are conditions precedent to bringing their action against the defendants, CITY and NYPD.

11. This action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

12. At all times hereinafter mentioned, the defendant NYPD was and is a department or agency of defendant CITY that was and is responsible for the appointment, training, supervision,

promotion and discipline of the police officers of the NYPD, including the individually named defendants herein.

13. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

14. At all times hereinafter mentioned, the defendants CITY and NYPD employed the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and her assistants, drivers, and others hereinafter mentioned in their complaint.

15. Upon information and belief, the defendants CITY and NYPD owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in their complaint.

16. Upon information and belief, the defendants CITY and NYPD maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in their complaint.

17. Upon information and belief, the defendants CITY and NYPD controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in the complaint.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

18. On June 22, 2014, the plaintiff CAMELLA WONG was lawfully on the premises of the Boerum Street parking lot in back of 125 Humboldt Street, Brooklyn, New York.

19. On June 22, 2014, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

20. Based upon information and belief, the officers, including the individually named defendants herein, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

21. Plaintiff CAMELLA WONG was injured when multiple members of the NYPD, including the individually named defendants herein, punched and hit plaintiff in and about her face and body, forcibly detained and handcuffed her.

22. Plaintiff CAMELLA WONG was caused to suffer severe personal injuries.

23. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

24. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, defendants Officer THOMAS THEN and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

25. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff CAMELLA WONG.

26. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

27. Due to the foregoing, plaintiff CAMELLA WONG is entitled to damages

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

28. Plaintiff CAMELLA WONG repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 26, inclusively with the same force and effect as if set for the fully and at length set forth herein.

29. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff CAMELLA WONG was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

30. Due to the foregoing, plaintiff CAMELLA WONG is entitled to damages

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

31. Plaintiff CAMELLA WONG repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 29, inclusively with the same force and effect as if set for the fully and at length set forth herein.

32. Plaintiff was arrested, held in custody, restrained of her liberty and forced to spend hours and days incarcerated.

33. The arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

34. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

35. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

36. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of her liberty caused her great humiliation and as a result of which he has been damaged.

37. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

38. The charges against plaintiff were wholly dismissed.

39. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; her reputation and character were injured; her earning power permanently impaired.

40. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 39, inclusively with the same force and effect as if set forth fully and at length set forth herein.

42. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

43. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. She also suffered serious reputational and economic injuries.

44. The acts and conduct described above deprived Plaintiff of her rights:
- a. To freedom of speech and association;
 - b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
 - c. To be free from malicious prosecution by police officers acting under color of law;
 - d. To be free from abuse of process by police officers acting under color of law;
 - e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
 - f. To be free of unreasonable seizure by police officers acting under color of law;
 - g. To not have excessive force used against him by police officers acting under color of law; and
 - h. To not have summary punishment imposed upon him by police officers acting under color of law.
45. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

46. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 44, inclusively with the same force and effect as if fully and at length set forth herein.

47. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar

circumstances.

48. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

49. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal custom or policy.

50. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

51. All defendants named herein are derivatively liable for the acts of each other.

52. Their action comes within one or more of the exceptions set forth in CPLR 1602.

53. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

54. Plaintiff CAMELLA WONG repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 52, inclusively with the same force and effect as if fully and at length set forth herein.

55. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

56. At all relevant times, the defendant CITY was responsible for the training of its police officers, and more particularly, defendants Officer THOMAS THEN and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

57. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

58. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff CAMELLA WONG.

59. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

60. All defendants named herein are derivatively liable for the acts of each other.

61. The action comes within one or more of the exceptions set forth in CPLR 1602.

62. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

63. Plaintiff CAMELLA WONG repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 61, inclusively with the same force and effect as if fully and at length set forth herein.

64. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

65. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of

their office as police officers for such city and county.

66. The acts and conduct described above deprived Plaintiff of her rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

67. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

68. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical

symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

69. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of her privacy and liberty, has been adversely affected in her employment and in her ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for her physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

70. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

71. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CAMELLA WONG

72. Plaintiff CAMELLA WONG repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 70, inclusively with the same force and effect as if fully and at length set forth herein.

73. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

74. As a result of the foregoing, plaintiffs suffered serious permanent emotional, mental, physical, reputational and economic injuries.

75. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LACEY CHARLES

76. On June 22, 2014, the plaintiff LACEY CHARLES was lawfully on the premises of the Boerum Street parking lot in back of 125 Humboldt Street, Brooklyn, New York.

77. On June 22, 2014, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

78. Based upon information and belief, the officers, including the individually named defendants herein, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

79. Plaintiff LACEY CHARLES was verbally assaulted and was knocked to the ground when multiple members of the New York City Police Department, including the individually named defendants herein who forcibly detained and handcuffed her.

80. Plaintiff LACEY CHARLES was caused to suffer severe personal injuries.

81. At all relevant times and in all their actions described herein, the defendants, including the individually named defendants herein, were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and

incidental to their otherwise lawful duties and functions as agents, servants and employees.

82. At all relevant times, the defendant CITY was responsible for the actions of its police officers, and more particularly, defendants Officer THOMAS THEN and OFFICERS "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

83. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff LACEY CHARLES.

84. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered physical assault and battery, and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

85. Due to the foregoing, plaintiff LACEY CHARLES is entitled to damages

**AS AND FOR A TENTH CAUSE OF
ACTION ON BEHALF OF LACEY CHARLES**

86. Plaintiff LACEY CHARLES repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 84, inclusively with the same force and effect as if set for the fully and at length set forth herein.

87. As a result of the aforementioned actions of members of the NYPD, including the individually named defendants herein, plaintiff LACEY CHARLES was placed in apprehension of imminent or offensive contact and was concerned that the defendants were about to cause an offensive or harmful bodily contact.

88. Due to the foregoing, plaintiff LACEY CHARLES is entitled to damages

**AS AND FOR A ELEVENTH CAUSE OF
ACTION ON BEHALF OF LACEY CHARLES**

89. Plaintiff LACEY CHARLES repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 87, inclusively with the same force and effect as if set for the fully and at length set forth herein.

90. Plaintiff was arrested, held in custody, restrained of her liberty and forced to spend hours and days incarcerated.

91. The arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

92. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

93. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

94. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of her liberty caused her great humiliation and as a result of which she has been damaged.

95. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

96. The charges against plaintiff were wholly dismissed.

97. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; her reputation and character were injured; her earning power permanently impaired.

98. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A TWELFTH CAUSE OF
ACTION ON BEHALF OF LACEY CHARLES

99. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 97, inclusively with the same force and effect as if set for the fully and at length set forth herein.

100. Such conduct breached the protections provided by the New York State Constitution Article I, §§ 6, 11, and 12.

101. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputational and economic injuries.

102. The acts and conduct described above deprived Plaintiff of her rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under

color of law; and

- h. To not have summary punishment imposed upon him by police officers acting under color of law.

103. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A THIRTEENTH CAUSE OF
ACTION ON BEHALF OF LACEY CHARLES**

104. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 102, inclusively with the same force and effect as if fully and at length set forth herein.

105. Defendants were further negligent in failing to exercise the care in the performance of police duties as a reasonably prudent and careful police officers would have used under similar circumstances.

106. That these defendants were further negligent in that the CITY and NYPD were negligent in the training and instruction of its police and corrections officers by not exercising care in instructing them as to their department, proper police procedure, behavior and conduct as police officers and representatives of the CITY.

107. At all times relevant herein, the acts complained of herein are the direct and proximate result of the failure of the CITY and NYPD to properly select, train, supervise and discipline its employees and servants, and in particular the individual defendants in accordance with the statutes, ordinances, regulations, customs and usages of the defendant CITY and of the State of New York and of the United States of America. Defendant CITY is liable for any torts or liability of the NYPD, its police officers, and its agents and employees under a municipal

custom or policy.

108. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

109. All defendants named herein are derivatively liable for the acts of each other.

110. The action comes within one or more of the exceptions set forth in CPLR 1602.

111. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A FOURTEENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF LACEY CHARLES**

112. Plaintiff LACEY CHARLES repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 110, inclusively with the same force and effect as if fully and at length set forth herein.

113. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

114. At all relevant times, the defendant CITY was responsible for the training of its

police officers, and more particularly, defendants Officer THOMAS THEN and "JOHN/JANE DOES" the unknown police officers whose identity plaintiff intends to discover.

115. At all relevant times, the defendant CITY was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD, including the individually named defendants herein.

116. At all times mentioned herein, the defendant CITY knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff LACEY CHARLES.

117. As a result of the foregoing, plaintiff was rendered sick, sore, lame, and disabled, suffered injuries both internal and external, pain and mental anguish; was confined to her bed and home for a lengthy period of time; was compelled to seek medical care and attention and upon information and belief, will in the future be compelled to seek medical care and attention; was prevented from her usual vocation, avocation and activities and upon information and belief will in the future be disabled from her following usual vocation, avocation and activities and will thereby suffer a diminution of enjoyment of life and loss of income.

118. All defendants named herein are derivatively liable for the acts of each other.

119. The action comes within one or more of the exceptions set forth in CPLR 1602.

120. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR A FIFTEENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF LACEY CHARLES**

121. Plaintiff LACEY CHARLES repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 119, inclusively with the same force and effect as if fully and at length set forth herein.

122. Ther action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

123. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

124. The acts and conduct described above deprived Plaintiff of her rights:

- i. To freedom of speech and association;
- j. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- k. To be free from malicious prosecution by police officers acting under color of law;
- l. To be free from abuse of process by police officers acting under color of law;
- m. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- n. To be free of unreasonable seizure by police officers acting under color of law;

- o. To not have excessive force used against him by police officers acting under color of law; and
- p. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

126. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

127. As a result of the conduct of Defendants, Plaintiff suffered serious physical injury causing Plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

128. As a result of the conduct of Defendants, Plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of her privacy and liberty, has been adversely affected in her employment and in her ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for her physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

129. In addition, the acts of the Defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it

constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which Plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

130. Due to the foregoing, plaintiff is entitled to damages.

**AS AND FOR AN SIXTEENTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF LACEY CHARLES**

131. Plaintiff LACEY CHARLES repeats, realleges and incorporates in full paragraphs the contents of Paragraphs 1 through 129, inclusively with the same force and effect as if fully and at length set forth herein.

132. At all times relevant herein, the aforesaid acts undertaken by the defendants and complained of by plaintiff were so outrageous as to shock the conscience of the court.

133. As a result of the foregoing, plaintiff suffered serious permanent emotional, mental, physical, reputational and economic injuries.

134. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiffs demand:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise

have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

f. judgment awarding damages on the SIXTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

g. judgment awarding damages on the SEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

h. judgment awarding damages on the EIGHTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

i. judgment awarding damages on the NINTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

j. judgment awarding damages on the TENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

k. judgment awarding damages on the ELEVENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

l. judgment awarding damages on the TWELFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

m. judgment awarding damages on the THIRTEENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

n. judgment awarding damages on the FOURTEENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

o. judgment awarding damages on the FIFTEENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

p. judgment awarding damages on the SIXTEENTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

q. interest, the costs and disbursements of ther action, together with such other

and further relief as to ther Court seems just and proper.

Dated: New York, New York
September 21, 2015


By: **Roberta D. Asher**
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiffs
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.

CAMELLA WONG and LACEY CHARLES,

Plaintiffs,

**ATTORNEY'S
VERIFICATION**

-against-

P.O. THOMAS THEN (Shield # 11261), THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and and POLICE OFFICERS ; "JOHN/JANE DOES (the names being fictitious, and who are employees of the New York City Police Department who are not yet identified),

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because it is not in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
September 21, 2015


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CAMELLA WONG and LACEY CHARLES,

Plaintiffs,

-against-

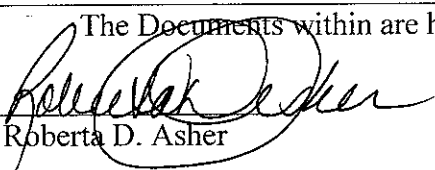
P.O. THOMAS THEN (Shield # 11261), THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and and POLICE OFFICERS ; "JOHN/JANE DOES (the names being
fictitious, and who are employees of the New York City Police Department who are not yet
identified) ,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By:


Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiffs
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2015 .

NOTICE OF
SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2015 , at 9:30
A.M.

Dated: